

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-16

SAMSUNG ELECTRONICS AMERICA, INC.,
COMPLAINANT,

v.

COSCO SHIPPING LINES CO., LTD,

RESPONDENT.

v.

SAMSUNG ELECTRONICS COMPANY, LTD., SAMSUNG
SDSAP GLOBAL SCL ASIA PACIFIC PTE LTD., AND SAMSUNG
ELECTRONICS LOGITECH COMPANY, LIMITED
THIRD PARTY RESPONDENTS,

**JOINT MOTION TO EXTEND AND
MODIFY THE DISCOVERY SCHEDULE**

In accordance with the instructions of the Presiding Officer given in the February 13, 2026, conference and the Order issued on February 18, 2026, Complainant Samsung Electronics America, Inc. (“SEA”) and Respondent COSCO Shipping Lines Co., Ltd. (“COSCO”) (collectively, the “Parties”) submit this Joint Motion to Extend and Modify the Discovery Schedule (“Joint Motion”). The Parties respectfully submit that good cause exists for the requested relief, which is jointly sought and will not result in prejudice to any party.

During the February 13, 2026 conference, the Parties advised the Presiding Officer that discovery remains ongoing and that COSCO’s document production has not yet been completed under the schedule set forth in the September 12, 2025 Order. At that conference, the Presiding

Officer directed the Parties to file a joint motion seeking an extension of the discovery schedule, including proposed revised discovery deadlines, by February 18, 2026. In accordance with the Presiding Officer's directive, the parties proposed to extend and modify the schedule, as follows:

Event	Current Deadline	Requested Deadline
Joint Status Report	[NONE]	March 2, 2026
Production of Documents Completed; Depositions of Fact Witnesses May be Noticed	October 17, 2025	April 16, 2026
Joint Status Report	[NONE]	April 23, 2026
Complete Fact Depositions; Expert's Identified	December 12, 2025	August 20, 2026
Expert Reports due; Rebuttal Expert(s) Identified	[NONE]	September 18, 2026
Joint Status Report	[NONE]	September 25, 2026
Expert Rebuttal Reports Due	[NONE]	October 27, 2026
Complete Expert Depositions	[NONE]	December 4, 2026
Discovery completed	January 9, 2026	December 4, 2026
Joint Status Report	[None]	December 9, 2026

The Parties respectfully submit that the proposed deadlines are reasonable and warranted given the scope of the claims at issue. Discovery in this matter is complex and time-consuming, requiring the collection, processing, review, compilation, and production of voluminous information, data, and documents in connection with over 22,000 charges. The Federal Maritime Commission has recognized that such circumstances constitute good cause for extending discovery deadlines, particularly where the volume and complexity of discovery render compliance with existing schedules impracticable. See *Samsung Electronics America, Inc. v. HMM Co., Ltd. f/k/a Hyundai Merchant Marine Co., Ltd.*, Dkt. No. 24-23 (ALJ Nov. 21, 2025) (finding that good cause

exists to grant the Joint Motion to extend discovery beyond the 150-day period due to the large volume and complexity of the case).

1. COSCO has produced, and continues to produce, documents on a rolling basis, with its most recent production occurring on February 16, 2026. Document collection and processing have required significant time due to the existence of electronically stored information across multiple locations, including data maintained in China and Korea. COSCO expects to complete its document production within approximately sixty (60) days. Documents produced by both SEA and COSCO will then need to be reviewed, translated, and assessed for use in depositions and indeed, selecting certain deponents.

2. The Parties anticipate that each will take up to twenty (20) depositions, including party witnesses, former party witnesses, and third-party witness depositions. Some of these witnesses, in connection with COSCO and third-parties, are located outside the United States. Given the number of anticipated witnesses, their geographic dispersion, the need to conduct depositions abroad, the logistical challenges associated with locating and scheduling former employees, and the time required to review and translate foreign-language documents necessary for effective examination, the Parties respectfully submit that the existing sixty-day period allotted for depositions is on reflection too truncated in order to ensure a proper record for the Presiding Officer. Accordingly, the Parties submit that a longer deposition period is warranted to permit the Parties to complete discovery and develop a full and complete record.

3. The current schedule does not provide sufficient time, specific deadlines, or clarity regarding the scope of now anticipated expert discovery. This includes information concerning each container in the assessment of damages. The current schedule provides only for the commencement of expert depositions and the completion of all discovery. There are no deadlines

for identification of experts or exchange of affirmative or rebuttal expert reports. As a result, the Parties' proposed modification of the schedule includes essential deadlines to permit orderly and fair expert discovery. *See* Fed. R. Civ. P. 26(a)(2)(D) (sequencing affirmative expert disclosures before rebuttal expert disclosures).

CONCLUSION

For the foregoing reasons, and consistent with the Parties' February 13, 2026 conference with the Presiding Officer and February 18, 2026 Order, the Parties respectfully submit that good cause exists to extend the current discovery deadlines. The Parties therefore respectfully request that the Presiding Officer grant this Joint Motion to extend and modify the schedule.

Respectfully Submitted,

Dated: February 18, 2025

HOLLAND & KNIGHT LLP

By: /s/ Kristine Little
Christopher R. Nolan
Matthew DiBlasi
Allison N. Skopec
787 7th Avenue
New York, NY 10019
Telephone: (212) 513-3200
chris.nolan@hklaw.com
matthew.diblasi@hklaw.com
allison.skopec@hklaw.com

Gerald A. Morrissey III
Kristine O. Little
800 17th Street N.W., Suite 1100
Washington, D.C. 20006
Telephone: (202) 955-3000
gerald.morrissey@hklaw.com
kristine.little@hklaw.com

Counsel to Samsung Electronics America, Inc.

JEFFREY/FENNEMAN LAW + STRATEGY, PLLC

By: /s Rebecca Fenneman
Eric C. Jeffrey
EJeffrey@JeffreyFenneman.com
Rebecca A. Fenneman
RFenneman@JeffreyFenneman.com

NIXON PEABODY LLP

Gordon L. Lang
Glang@nixonpeabody.com
Brian J. Whittaker
BWhittaker@nixonpeabody.com

Kaya C. Massey
KMassey@JeffreyFenneman.com
Nicholas L. Webb
NWebb@JeffreyFenneman.com
700 12th Street, NW Suite 700
Washington, DC 20005

Martha A. Medina
mmedina@nixonpeabody.com
799 9th Street NW, Suite 500
Washington, DC 20001-5327

Counsel to COSCO Shipping Lines Co., Ltd.

CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel at the following email addresses:

JEFFREY/FENNEMAN LAW +
STRATEGY, PLLC

Eric C. Jeffrey
EJeffrey@JeffreyFenneman.com
Rebecca A. Fenneman
RFenneman@JeffreyFenneman.com
Kaya C. Massey
KMassey@JeffreyFenneman.com
Nicholas L. Webb
NWebb@JeffreyFenneman.com
700 12th Street, NW Suite 700
Washington, DC 20005

NIXON PEABODY, LLP

Gordon L. Lang
Glang@nixonpeabody.com
Brian J. Whittaker
BWhittaker@nixonpeabody.com
Martha A. Medina
mmedina@nixonpeabody.com
799 9th Street NW, Suite 500
Washington, DC 20001-5327

HOHENSTEIN & PARKINSON, LLP

James H. Hohenstein
Jim.hohenstein@hplawny.com
385 South End Avenue, #5K
New York, NY 10280

Executed: February 18, 2026

/s/ Kristine O. Little
Kristine O. Little